

INTELLECTUAL PROPERTY REGISTRATION PROPOSAL

Private & Confidential



ALTACIT GLOBAL
Attorneys-at-Law

CHENNAI | BANGALORE | COIMBATORE | HYDERABAD |
COCHIN

INTELLECTUAL PROPERTY | CORPORATE
LEGAL

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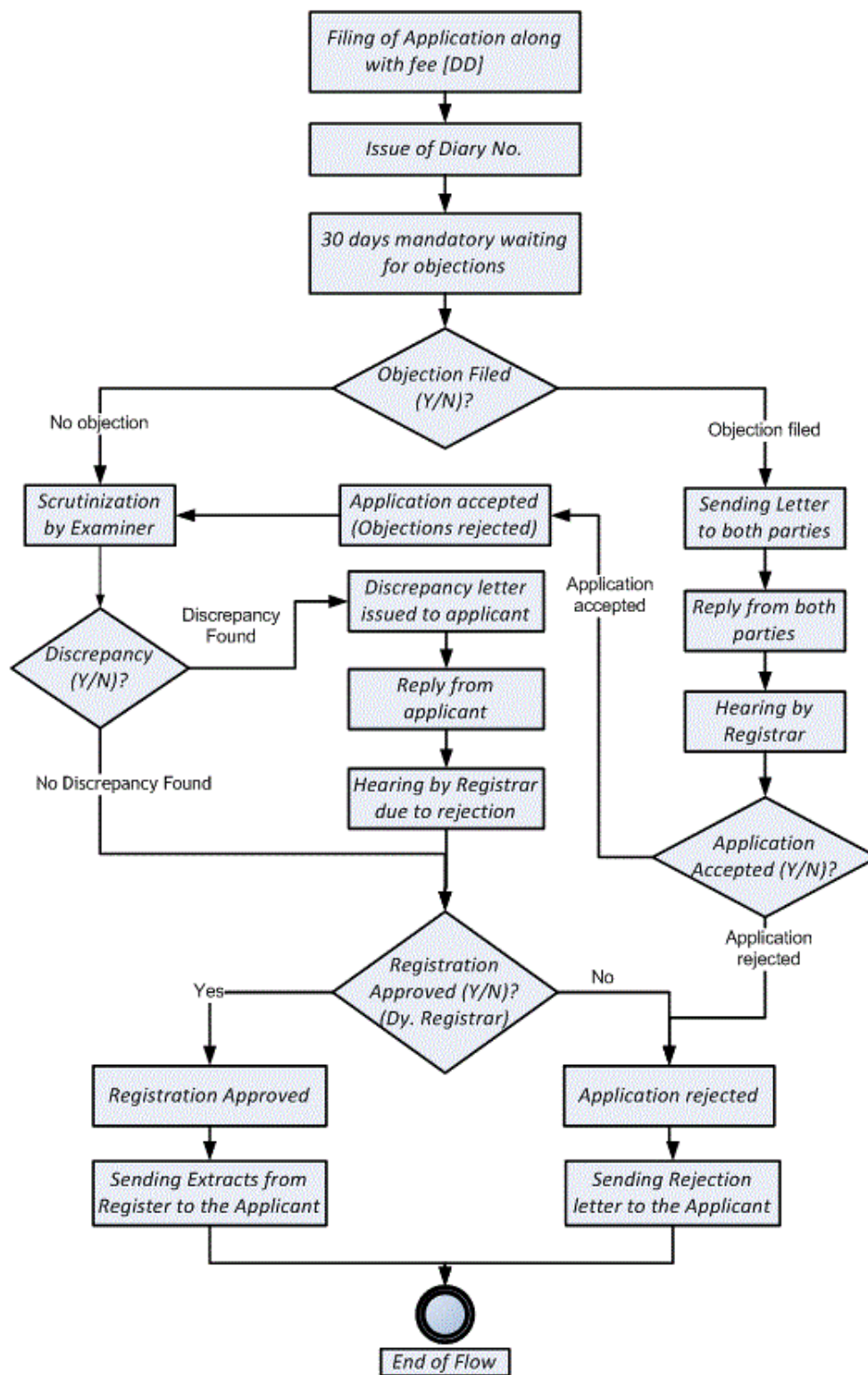
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COPYRIGHT REGISTRATION PROCESS

- a. Copyright protection is afforded for;
 - 1. Literary work - a script or a book consisting mainly of text, Source code / computer programme, Software manual / document.
 - 2. Pictorial work/ Artistic work - a photo or a book consisting mainly of pictures, Screen shots.
 - 3. Motion picture/Musical work - feature-length film, television show, or the like, Sound Recording.
- b. A copyright once registered in India under the Berne Convention would be protected in all the other member countries which are around 164 member countries.
- c. We would be able to help you file, prosecute and follow up the applications for copyright registration until grant.

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Copyright Registration Workflow



COPYRIGHT INFORMATION SHEET

c. For filing the applications, we require the following information:

i. Relating to the 'works' –

1. Three copies of the work, if published
2. Two copies of the work, if unpublished
2. Name, address and nationality of the applicant
3. Language of the work
4. Are the works published? If yes, country of first publication, date of first publication or first use.

ii. Relating to the ownership of the works –

1. The registered name, address and nationality of the Applicant.
2. Names, addresses and nationalities of all the authors.
3. Title of the work.

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COMMERCIALS FOR COPYRIGHT REGISTRATION

	<u>Particulars</u>	Profession al fee (INR)	Government fee (INR)
1	Application for registration of copyright (Form XIV) under literary work. (Government fee will change depending on the nature of work)	10000/-	a)INR 500.00- For literary work; b) INR 2000.00- Artistic work
2	Reporting, advising, and responding to the Discrepancy Notice, if any	3000/-	-
3	Attending hearing, if any	5000/-	
4	Receiving, checking and reporting the Registration Certificate	3000/-	

- *Disbursements like courier, Speed post, stationery, travel/ commutation, stamp paper and other such expenses shall be at actual. A minimum amount of INR 700/- will be charged with each invoice to cover overhead charges.*
- *Visiting Copyright office, Delhi to attend the hearing, (if applicable) shall be additional and prior approval shall be obtained in this regard*

TRADEMARK REGISTRATION PROCESS

Application for registration of trademark/service mark has to be filed under the Trademarks Act, 1999 with the Trademark Registry, Government of India.

Application can be made to all your Trademarks and has to be made under the relevant class of goods or services. If the mark falls under more than one class, separate applications can be filed under the relevant classes. Please provide us the list of products or services that you render. So that we can find out the most appropriate classes under which application should be made.

Once the Application is made with the Trademark Registry, it is further processed to be examined, published and granted. The normal duration for obtaining registration in India is approximately 8 -12 months from the date of filing application in a straight forward case. This would however depend on the contingent factors of the case.

Prior to filing applications for registration, we can conduct an official search to determine whether any identical or similar mark exists on the records of the Trademarks Registry. We wish to inform you that, a public search facility with the Trademark Registry website has been made available on the website www.ipindia.nic.in. If you want us to do the same we would charge a nominal fee for our professional services.

TM INFORMATION SHEET

Name of Applicant	
Registered Address	Address: District: State: PIN:
Business Form*	*1. (Partnership, LLP, Private Limited, Public Limited, Proprietorship, Society, Trust etc.). Please provide Registration document 2. If Partnership Firm/ LLP please give the Name, gender, Father's Name and Address of all Partners along with the registered deed 3. If company, please specify, country/ state of incorporation. Startup/ small enterprise, please provide proof for the same
Trade Description	service provider/ manufacturer/ distributor/ Trader
Mark	
If the mark is a device/ logo, description for the same	
First Date of Use (dd/mm/yy) or Proposed use of the mark	
Field of Goods/ services over which the mark is used/ proposed to be used	
Postal address for our communication & Contact number (please provide at least two contacts)	
Authorized signatory	

Additional documents required:

- a) Power of Attorney authorizing Altacit Global as the agent. We shall prepare the same upon receipt of the information and send it for your signature
- b) Proof of Registrations. If the Application is a startup/ small entity, proof for the same
- c) Logo in JPEG format (8x8)
- d) If the mark is already in use, please provide proof of use in the market like advertisements, bill books, invoices, social media content and any such other materials showing the use of the mark

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COMMERCIALS FOR SINGLE TRADEMARK REGISTRATION IN INDIA

(ONLINE FILING)- in INR

SL.NO	PARTICULARS	GOVERNMENT FEE (per mark/per class)- others/ Large entity	PROFESSIONAL FEE (per mark/per class)
1.	Conducting Trademark Search in the website www.ipindia.nic.in (per mark) and providing a written opinion	-	1000/-
2.	Filing Trademark Application. *As a courtesy, we shall also monitor our clients marks and intimate them about any	9,000/-	7500/-
	a. For filing User affidavit when User date (Date of first usage of the mark) is claimed	-	3000/-
	b. If the mark is not in use (proposed to be used/Intent to use)	-	-
3.	Reporting Examination Report with analysis, advising, drafting filing appropriate reply - if it occurs	-	4500/-
4.	Reporting, attending Hearing along with written submissions- if it occurs	-	4000/-
5.	Following up for Registration Certificate	-	3000/-
6.	Taking over files from other Attorneys and coming on record	900/-	2000/-
7.	Attending to renewals	9000/-	5000/-

NOTE

* Disbursements such as Printing, Stationery, Photocopies, Notary, Stamp Paper, Conveyance, Postage, any other Government fee that may have to be paid during the prosecution etc. shall be at actual. A minimum amount of INR 700/- will be charged with each invoice to cover overhead charges.

* The charges are levied at each stage of the prosecution of the application.

* These charges do not include the professional fee or any other fee for the unforeseen situations that may occur during the prosecution of the trademark like filing for any amendments as per the directions of the Registry, oppositions and others.

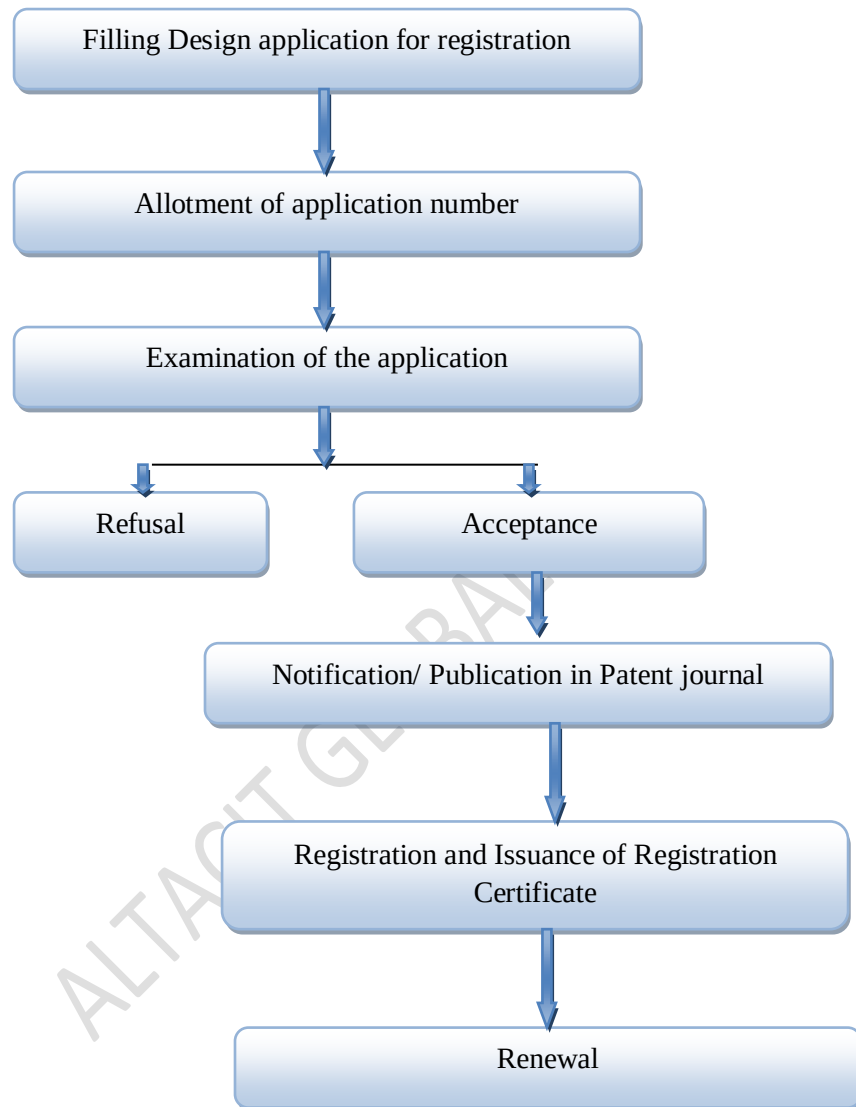
DESIGN REGISTRATION

Design registration covers only the non-functional/ aesthetic features of a product/design. It protects the forms of appearance, style or design of a novel object. Relevant aspects are the shape, configuration, surface pattern, the colour or line or a combination thereof as applied to an article which produces an aesthetic impression on the sense of sight.

The criteria for filing the Design application is that the design should not have been published or made available to the public in any form of documents anywhere in the world before the date of application.

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DESIGN REGISTRATION PROCEDURE IN INDIA



COMMERCIALS FOR DESIGN REGISTRATION IN INDIA (in INR)

S. No.	Services	Professional Fee. In INR	Government Fee- in INR	
			Natural Person/Individual/Small Entity (MSME Holder)	For other than natural person (s) either alone or jointly with Natural person (Large Entity)
1	Drafting and filing Design application	10000/-	1000/-	4000/-
2	Reporting, advising, drafting and filing response to the Examination/ compliance Report- if it occurs	4000/-	Nil	Nil
3	Hearing, if it occurs	3000/-	Nil	Nil
4	Checking for errors and reporting the Design Certificate	5000/-	Nil	Nil

NOTE

* Disbursements as Printing, Stationery, Photocopies, Notary, Stamp Paper, Conveyance, Postage etc. shall be at actual.

* The above cost does not include prosecution charges, physical visits to the Design office and any other incidental costs;

Documents Required

1. Power of Attorney [POA] duly signed by the applicant.

2. Atleast three-five views of the proposed design in colour and the title of the proposed design

** A minimum of INR 600/- will be charged with every invoice to cover overhead costs.



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